

Amended Complaint Against Officer Nolan Rusk

Mara Ellison files this amended complaint on May 12, 2025, in simulated Civil Action No. SYN-WDVA-25-CV-0733. She voluntarily removes the City of Alder Creek and Chief Samuel Orton as defendants and proceeds only against Officer Nolan Rusk in his individual capacity. The amendment abandons the municipal and official-capacity counts without converting any earlier allegation into a finding or admission.

This action arises under 42 U.S.C. § 1983 and the Fourth Amendment. Ellison alleges that Rusk used excessive force after initiating a welfare-check seizure in the breezeway outside her apartment. The legality of beginning the seizure is not challenged. The sole merits claim asks whether one five-second drive-stun application, delivered while Rusk forced Ellison down, was reasonable under the circumstances alleged by Ellison.

Every name, address, institution, time entry, and quoted statement in this pleading belongs to a fictional training record. Real statutes and constitutional standards are identified as law, not as proof of the invented facts. The Court has federal-question jurisdiction, and venue is proper because the simulated event occurred within the Western District of Virginia.

Ellison demands a jury for disputed historical facts and seeks damages and other relief allowed against Rusk individually.

Plaintiff, defendant, and narrowed procedural boundary

Ellison resides at Larkspur Court Apartments, 1844 Holloway Road, Alder Creek, Virginia 24018. Rusk was a sworn Alder Creek Police Department officer on February 3, 2025. He wore a department camera, carried a conducted-energy weapon, responded in uniform, and invoked official authority. He therefore acted under color of state law for purposes of the pleaded claim.

Ellison no longer pursues a policy, custom, failure-to-train, official-capacity, or municipal damages theory. The City and Chief Orton are omitted from the amended caption. No count asks Rusk to answer for municipal conduct that he did not personally undertake. The amendment also does not plead a state tort, unlawful-entry claim, false-arrest theory, or challenge to Iris Ellison's decision to request help.

The force inquiry remains fact dependent. Ellison alleges one version of movements that occurred while the camera's view was blocked. Rusk has stated another. At a stage requiring facts viewed for Ellison, her version supplies the assumed circumstances; at trial, a factfinder may assess all admissible evidence. The existence of competing accounts is not itself proof that either witness lied.

Ellison pleads with temporal precision to distinguish visible events from obscured ones. She alleges the wrist restraint began at 19:53:02, visual obstruction ran from 19:53:08 through 19:53:22, and the only energy cycle occurred from roughly 19:53:16 through 19:53:21.

Call for assistance and noncriminal setting

At 19:42:11, Iris Ellison telephoned emergency communications because she believed Mara had missed medication and was experiencing a mental-health crisis. Iris asked for a welfare check. She reported no assault, crime, or threat. She told Dispatcher Lena Cho that she had not seen Mara with a weapon and knew of none. Cho dispatched Rusk and Officer Priya Vega at approximately 19:47:36.

Rusk arrived at Larkspur Court around 19:52:14 with his body-worn camera operating. He approached the exterior breezeway. At approximately 19:52:48, he encountered Ellison seated near her apartment door. Her hands were empty and initially visible. Ellison alleges that she did not threaten either officer, advance toward them, attempt flight, or possess an object that reasonably appeared to be a weapon.

Ellison was distressed and did not welcome police contact. She asked for space and questioned why officers were there. She alleges that her tone and delayed compliance did not create an immediate danger. Vega remained nearby, providing another trained officer who could communicate or assist. The breezeway was confined, but it opened away from Ellison's seated position and did not place a bystander within her reach.

The call's protective purpose did not eliminate every possible safety concern. It did, Ellison alleges, require force calibrated to actual behavior rather than a generalized possibility that a crisis could become dangerous.

Wrist restraint and competing descriptions of movement

At approximately 19:53:02, Rusk grasped Ellison's left wrist and restricted its movement. Rusk has acknowledged that the seizure began at that point. Ellison alleges that the grip tightened and hurt. She recoiled, turned her torso, and pulled her arm. She did not consent to the hold and did not comply immediately with commands to stop pulling.

Ellison specifically denies striking Rusk's forearm, forming a fist, swinging at either officer, grabbing any object, or reaching toward Rusk's duty belt. She alleges that both her hands remained away from his equipment and that her movement was directed away from the painful grip. She further alleges that she neither stood to flee nor moved toward the breezeway exit.

Rusk's camera image began to be blocked at 19:53:08 by close-range bodies, clothing, and the breezeway's physical features. That obstruction continued until 19:53:22. Vega's vantage did not reliably reveal Ellison's hands during the same pivotal interval. The audio includes Rusk saying "stop pulling" at approximately 19:53:11 and Ellison answering "you're hurting me." It also includes motion sounds and commands.

Ellison alleges that the recording does not conclusively establish either a forearm strike or a belt reach. Her claim depends on evidence assessed under the applicable procedural standard, not on inventing visible detail inside the blocked view.

One drive-stun cycle while forcing Ellison down

At approximately 19:53:16, Rusk pressed his conducted-energy weapon against Ellison and activated one drive-stun cycle. The cycle lasted about five seconds and ended near 19:53:21. During that application he forced her toward the breezeway floor. Ellison cried out. She alleges that the electrical contact inflicted intense pain and left two superficial burn marks.

Ellison alleges that immediately before activation she was unarmed, had committed no crime, had not attempted flight, and posed no immediate danger. She admits pulling and noncompliance but denies violent resistance. She alleges that Rusk had not seen a weapon, had received an express no-weapon report, and had no objectively reasonable basis—on her version—to believe she had struck him or reached for equipment.

The view cleared around 19:53:22 with Ellison down. Vega then moved to assist with control of her hands. Handcuffing was completed by approximately 19:53:37. No second electronic cycle occurred. Ellison alleges that the brief overall duration does not make serious force automatically reasonable; the relevant question includes what safety need existed at the instant of activation.

Ellison does not allege that officers were forbidden to use any physical guidance. She alleges that painful electronic force was disproportionate when slower control, communication, or assistance could address nonthreatening pulling without an immediate safety exigency.

Medical and crisis-related aftermath

Ellison complained promptly of burning, wrist pain, and shoulder discomfort. Paramedic Mateo Cole examined her and recorded a left-wrist abrasion, two superficial contact sites, and shoulder symptoms. She was taken to Alder Creek Regional Medical Center. Clinical examination and imaging disclosed no fracture. Providers treated the skin areas, recommended conservative shoulder care, and supplied return precautions.

Ellison participated in a crisis stabilization plan beginning February 4 and attended follow-up through February 10. She alleges that those services addressed the mental-health circumstances that prompted Iris's call, while medical follow-up addressed pain and mobility. She was not charged with a criminal offense arising from the encounter.

The amended complaint does not claim a broken wrist, dislocated shoulder, internal injury, or permanent neurological loss. It seeks recovery for the injuries actually alleged: abrasion, two superficial burns, shoulder strain, acute pain, temporary functional restriction, emotional distress, and reasonable expense. The extent and duration of harm remain matters for evidence.

Care records contain histories from Ellison and from emergency personnel. Ellison does not treat a clinician's repetition of her account as eyewitness proof of movements during the obstruction. Nor does she concede that modest physical injury makes the constitutional question immaterial. Force may be unreasonable even when injury is not catastrophic, subject to proof of causation and damages.

Single count — Fourth Amendment excessive force

Ellison incorporates the preceding allegations. Rusk personally seized her and applied the challenged force while exercising police authority. A seizure's force must be objectively reasonable in light of the total circumstances, including the encounter's protective purpose, the absence of serious crime, any immediate threat, flight, resistance, available assistance, and changes in conditions before and during force.

On the facts Ellison alleges, she was distressed but unarmed; seated at first contact; not suspected of a crime; not fleeing; and not threatening anyone. After Rusk took her wrist, she pulled because the grip hurt. She did not strike him or reach toward his belt. Another officer was present. No immediate safety exigency justified a drive-stun cycle. Rusk nevertheless used that serious painful method while taking her to the ground.

Ellison alleges that this conduct violated the Fourth Amendment. She further alleges that, by February 3, 2025, existing law gave reasonable officers fair warning that serious painful force must be tied to a proportionate immediate safety need and may not be imposed merely to overcome nonthreatening noncompliance by an unarmed person in crisis. Her clearly-established-law allegation depends on her assumed facts, not on resolving the hidden movements in her favor as historical truth.

Rusk caused the injuries and losses described above, Ellison alleges, and is responsible in his individual capacity.

Relief, jury demand, and amendment certification

Ellison requests compensatory damages proved at trial, punitive damages if the evidence meets the controlling individual-capacity standard, reasonable attorney's fees and costs where authorized, interest allowed by law, and other nonduplicative relief appropriate to the single claim. She no longer requests municipal injunctive relief or judgment against the City or Chief Orton.

Ellison demands a jury on disputed facts and damages. She recognizes that the Court determines legal issues. If an immunity ruling produces an interlocutory appeal, she further recognizes the distinction between reviewable legal questions on assumed facts and nonreviewable requests to reweigh evidentiary sufficiency. This pleading does not tell an appellate court which witness to believe.

The amendment is filed within the period and by the mechanism accepted in this synthetic docket. The former defendants' omission is intentional. The pleading's allegation that Rusk began the seizure by grasping Ellison's wrist fixes the scope of the appeal: initiation lawfulness is not a target, and the challenged conduct is the degree of force that followed.

Fictional counsel certifies electronic service on May 12, 2025. No wording in this exercise identifies an actual resident, apartment property, medical provider, department, officer, or court proceeding. Real constitutional and statutory references remain legal sources only; they do not authenticate the invented record.

Respectfully submitted, Fictional Counsel for Mara Ellison